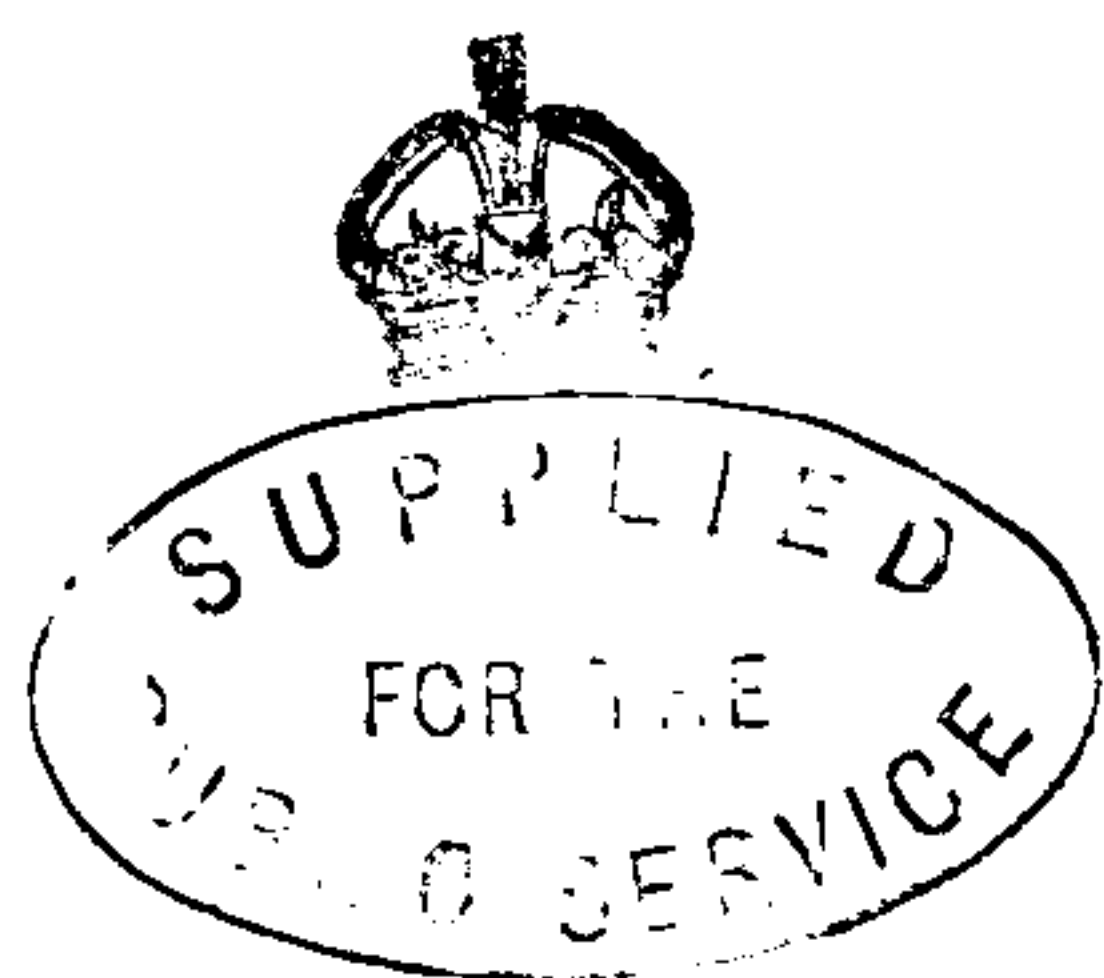




CHAPTER xxxv.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Carlisle Maidstone Nelson St. Helens and the Wandle Valley Joint Sewerage District. A.D. 1916.
[3rd August 1916.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. So long as the provisions of Article I. of the Order relating to Maidstone shall remain in operation sections twenty-five twenty-six and twenty-seven of the Municipal Corporations Act 1882 and section two hundred and forty-six of the Public Health Act 1875 shall not apply to any accounts of the mayor aldermen and burgesses of the borough of Maidstone acting by the Council (in this section referred to as "the Corporation") or of the treasurer of that borough or of the officers of the Corporation Provided that the accounts of the Corporation for the financial year ending the thirty-first day of March one thousand nine hundred and sixteen shall be audited as if this Act had not passed. Audit of accounts of Maidstone Corporation.

3. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 5) Act 1916. Short title.

A.D. 1916.

S C H E D U L E.

CITY OF CARLISLE.

*Carlisle
Order.*

*Provisional Order for altering the Carlisle Corporation
Act 1887.*

To the Mayor Aldermen and Citizens of the City of Carlisle;—

To the Rural District Council of Wigton;—

And to all others whom it may concern.

50 Vict.
Sess. 2.
c. xix.

WHEREAS the City of Carlisle (herein-after referred to as "the City") is an Urban Sanitary District of which the Mayor Aldermen and Citizens acting by the Council (herein-after referred to as "the Corporation") are the Urban Sanitary Authority and the unrepealed provisions of the Carlisle Corporation Act 1887 (which Act is herein-after referred to as "the Local Act") as altered by a certain Provisional Order duly confirmed by Parliament which does not affect the subject-matter of this Order are in force in the City;

And whereas the limits within which the Corporation are authorised to supply water (herein-after referred to as "the water limits of the Corporation") are those referred to in Section 40 of the Local Act;

And whereas it is expedient that the Corporation should be authorised to supply water in bulk to the Rural District Council of Wigton (herein-after referred to as "the Rural Council") for the purposes of the supply of water by that Council to their district or any part thereof and the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act in the manner herein-after set forth:

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect that is to say:—

Authorising
Corporation
to supply
water in bulk.

Art. I. The Corporation may from time to time enter into and carry into effect agreements with the Rural Council for the supply of water in bulk to the Rural Council for such remuneration and on such terms

[6 & 7 GEO. 5.] *Local Government Board's* [Ch. xxxv.]
Provisional Orders Confirmation (No. 5) Act, 1916.

and conditions and for such period as may be agreed upon for the purpose of enabling the Rural Council to supply water to their district or any part thereof: A.D. 1916.
—
Carlisle
Order.

Provided as follows:—

- (1)—(a) The Corporation shall not supply water to the Rural Council under the provisions of this Order if and so long as such supply would interfere with the supply of water for domestic purposes within the water limits of the Corporation; and
- (b) Nothing in this Article shall authorise the Corporation to lay any mains beyond the water limits of the Corporation:
- (2) The Rural Council shall not supply water obtained by them from the Corporation under any such agreement as afore-said to any area within the limits of supply of any company or person supplying water under parliamentary authority except with the consent of such company or person.

Art. II. This Order may be cited as the Carlisle Order 1916. Short title.

Given under the Seal of Office of the Local Government Board
this Sixth day of May One thousand nine hundred and sixteen.

(L.S.)

WALTER H. LONG President.
H. C. MONRO Secretary.

BOROUGH OF MAIDSTONE.

*Provisional Order for partially repealing and altering
certain Local Acts.* *Maidstone*
Order.

To the Mayor Aldermen and Burgesses of the Borough of
Maidstone;—

And to all others whom it may concern.

WHEREAS the Borough of Maidstone (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (herein-after referred to as "the Corporation") are the Urban District Council and the local authority within the meaning of the Public Health Act 1875 and there are in

[Ch. xxxv.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Orders Confirmation (No. 5) Act, 1916.

A.D. 1916.

*Maidstone
Order.*

5 Geo. IV.
c. cix.

40 & 41 Vict.
c. cxxxviii.

force in the Borough the unrepealed provisions of a Local Act passed in the fifth year of the reign of His late Majesty King George the Fourth and intituled "An Act for erecting new Market Places within " the Town of *Maidstone* in the County of *Kent* and for the better " regulating and maintaining the said Markets" and of the Maidstone Bridge Act 1877 (each of which Acts is herein - after separately referred to as the Act of the year in which it was passed and both of which Acts are herein-after together referred to as "the Local Acts");

And whereas by Section 34 of the Act of 1824 provision was made with regard to the payment of moneys received and the rendering of accounts by officers of the Corporation;

And whereas by Sections 27 and 28 of the Act of 1824 and Sections 19 and 20 of the Act of 1877 the Corporation were empowered to borrow money upon mortgage or otherwise as therein mentioned and by Section 23 of the Act of 1877 to re-borrow moneys borrowed by them under that Act;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to partially repeal alter or amend the Local Acts in the manner herein-after set forth:

38 & 39 Vict.
c. 55. Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts shall be partially repealed and altered so that the following provisions shall take effect that is to say:—

Audit of
Borough
accounts.

Art. I.—(1) Notwithstanding anything in the Local Acts all accounts of the Corporation and of the treasurer of the Borough and of the officers of the Corporation under any public or private Act of Parliament or otherwise relating to matters dealt with by the Corporation in any capacity and including the accounts of any joint committee and of the officers of any joint committee appointed by the Corporation with the council of another borough or with a County Council or with a District Council or a Parish Council shall be audited by a district auditor appointed by the Local Government Board in like manner as accounts of an urban authority and their officers are audited under Sections 247 and 250 of the Public Health Act 1875 and those sections and all enactments amending them or applying to audit by district auditors including the enactments imposing penalties and providing for the recovery of sums as well as all enactments relating to matters incidental to or consequential upon any such accounts or audit shall apply in like manner as if so far as they relate to an audit of the accounts

of an urban authority and the officers of that authority they were herein re-enacted with the necessary modifications and accordingly all burgesses of the Borough and all ratepayers and owners of property in the Borough shall have the like rights and there shall be the same appeal as in the case of that audit:

A.D. 1916.

*Maidstone
Order.*

Provided that for the purposes of this Article the First Schedule to the District Auditors Act 1879 shall be modified in the manner described in the Second Schedule to the Local Government Act 1888.

(2) Nothing in subdivision (1) of this Article shall apply to the audit of the accounts of the Corporation for the financial year ended the Thirty-first day of March One thousand nine hundred and sixteen.

(3) The Corporation may out of the borough fund—

(a) Pay reasonable subscriptions whether annually or otherwise to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at conferences or meetings of the said associations or any of them and of purchasing reports of the proceedings of any such conferences or meetings ;

(b) Pay the reasonable expenses of the Corporation in connexion with the presentation of the freedom of the Borough to persons whom they resolve to admit as honorary freemen in providing public entertainments on the occasion of public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the Borough.

Art. II.—(1) Where the Corporation have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this Article.

Power to use
one form of
mortgage for
all purposes.

(2) Every mortgage granted under this Article shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the common seal of the Corporation and may be made in the form contained in the Schedule to this Order or to the like effect.

(3) All mortgages granted under this Article shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever.

[Ch. xxxv.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Orders Confirmation (No. 5) Act, 1916.

A.D. 1916.

*Maidstone
Order.*

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this Article shall be and the same are by virtue of this Order charged indifferently upon all the revenues of the Corporation.

(5) Nothing in this Article contained shall alter or affect the obligations of the Corporation to provide for the repayment of the sums secured by mortgages granted under this Article and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this Order had not been made.

(6) Nothing in this Article contained shall alter or affect the obligations of the Corporation to provide for the payment of interest upon the sums secured by mortgages granted under this Article and interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable respectively if this Order had not been made.

(7) There shall be kept at the offices of the Corporation a register of the mortgages granted under this Article and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said offices without fee or reward and the town clerk or other person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this Article may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Schedule to this Order or to the like effect.

(9) There shall be kept at the offices of the Corporation a register of the transfers of mortgages granted under this Article and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the town clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original

mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby.

A.D. 1916.

*Maidstone
Order.*

(11) If the town clerk wilfully neglects or refuses to make in the register any entry by this Article required to be made he shall be liable to a penalty not exceeding twenty pounds.

(12) In this Article—

(a) the expression “statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity, rentcharge, rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government Department made or given or to be made or given by authority of any Act of Parliament passed or to be passed; and

(b) the expression “revenues of the Corporation” includes revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and rates or contributions leviable by or on the order or precept of the Corporation.

Art. III.—(1) The Corporation may from time to time for the purpose of providing temporarily for any current expenses that may be incurred by them under the provisions of any public general or local Act borrow by way of temporary loan or overdraft from any bank and in either case at such rate of interest as they may determine such sum as they may from time to time resolve not exceeding in the aggregate at any time an amount equal to one-sixth of the total aggregate amount of the before-mentioned expenses for the immediately preceding financial year and any amount so borrowed together with interest shall form a charge upon such funds or rates or upon such of the revenues of the undertakings of the Corporation as may be specified in the resolution of the Corporation authorising such borrowing and the Corporation may further utilise for providing temporarily for any such expenses any sinking fund reserve fund or other fund which they may have on hand crediting any such fund so utilised with such fair rate of interest

Provision
for enabling
Corporation
to borrow for
purpose of
providing
temporarily
for current
expenses.

[Ch. xxxv.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Orders Confirmation (No. 5) Act, 1916.

A.D. 1916. not being less than three per centum per annum as they may resolve
 Maidstone Provided that—
 Order.

- (a) any sum so borrowed or utilised in respect of the current expenses of any financial year together with the interest thereon shall be repaid out of the revenue received by the Corporation in respect of such financial year ;
- (b) the town clerk shall within forty-two days after the end of each financial year furnish to the Local Government Board a special report showing precisely the operation of the powers of this Article during such year and such report shall be in such form and shall contain such information as that Board shall approve or require ;
- (c) the Local Government Board may make such investigation as may be necessary to satisfy themselves that the requirements of this Article have been complied with and if it appear to the Local Government Board by the said report or by such investigation that the Corporation have failed to comply with the requirements of this Article that Board may by order suspend the operation of the powers of this Article for such period as they may think fit.

(2) The provisions of this Article limiting the amount of the sum which the Corporation may borrow and the provisions of paragraph (a) of subdivision (1) of this Article requiring the repayment thereof out of the revenue referred to in that paragraph shall not affect any lender or his security for the loan or overdraft and the interest thereon respectively or his right to obtain payment thereof from the Corporation.

(3) The provisions of this Article shall cease to be in force at the expiration of five years from the Thirty-first day of March One thousand nine hundred and seventeen unless they shall have been continued by Act of Parliament or Provisional Order made by the Local Government Board and confirmed by Parliament.

Power to
re-borrow.

Art. IV.—(1) Section 23 of the Act of 1877 is hereby repealed.

(2) The Corporation shall have power—

- (a) to borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid ; or
- (b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys

previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

A.D. 1916.
—
Maidstone
Order.

(3) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(4) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(5) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (a) by instalments or annual payments; or
- (b) by means of a sinking fund; or
- (c) out of moneys derived from the sale of land; or
- (d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(6) In this Article the expression “statutory borrowing power” has the same meaning as in Article II. of this Order.

Art. V. The Act of 1824 may be cited as the Maidstone Markets Act 1824 and this Order may be cited as the Maidstone Order 1916. Short titles.

The SCHEDULE above referred to.

FORM OF MORTGAGE.

By virtue of the Maidstone Order 1916 as confirmed by Parliament and of other their powers in that behalf enabling the Mayor Aldermen and Burgesses of the Borough of Maidstone acting by the Council (herein-after referred to as “the Corporation”) in consideration

A.D. 1916.

Maidstone
Order.

[illegible]

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon and mentioned in an endorsement to be made hereon under the hand of the mayor and town clerk of the Borough for the time being respectively and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Corporation have caused their common seal to be hereunto affixed this day of one thousand nine hundred and .

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named
consenting the within-mentioned time for repayment of the within-
mentioned principal sum of
is hereby extended to the

[6 & 7 GEO. 5.] *Local Government Board's* [Ch. xxxv.]
Provisional Orders Confirmation (No. 5) Act, 1916.

day of one thousand nine hundred and [and A.D. 1916.
the interest to be paid thereon on and from the day of *Maidstone*
 one thousand nine hundred and *Order.*
is hereby declared to be at the rate of per centum
per annum].

Dated this day of one thousand nine
 hundred and .

FORM OF TRANSFER OF MORTGAGE.

I [the within named] [of
] in consideration of the sum of
pounds paid to me by of
(herein-after referred to as "the transferee") do hereby transfer to the
transferee [his] executors administrators and assigns [the within-written
security] [the mortgage number of the revenues of the Mayor
Aldermen and Burgesses of the Borough of Maidstone acting by the
Council bearing date the day of]
and all my right and interest under the same subject to the several
conditions on which I hold the same at the time of the execution
hereof and I the transferee for myself my executors administrators and
assigns do hereby agree to take the said mortgage security subject to
the same conditions.

Dated this day of one thousand nine hundred
 and .

Given under the Seal of Office of the Local Government Board
this Third day of May One thousand nine hundred and
sixteen.

(L.S.)

WALTER H. LONG President.
H. C. MONRO Secretary.

A.D. 1916.

BOROUGH OF NELSON.

Nelson Order.

Provisional Order for altering the Nelson Corporation Act 1903.

To the Mayor Aldermen and Burgesses of the Borough of Nelson ;—

And to all others whom it may concern.

WHEREAS the Borough of Nelson (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (herein-after referred to as "the Corporation") are the Urban District Council and the local authority within the meaning of the Public Health Act 1875 ;

29 Vict.

c. lxxvi.

42 & 43 Vict.

c. lxxxix.

51 & 52 Vict.

c. cxlvi.

3 Edw. 7.

c. cvii.

And whereas the unrepealed provisions of the Nelson Water and Gas Act 1866 the Nelson Local Board Act 1879 the Nelson Local Board Act 1888 and the Nelson Corporation Act 1903 (each of which Acts is herein-after referred to as the Act of the year in which it was passed) are in force in the Borough ;

And whereas by the Act of 1866 the Act of 1879 and the Act of 1888 the Local Board for the district of Nelson in the County of Lancaster who were the predecessors of the Corporation were authorised to make and maintain waterworks and to supply water and by Sections 5 and 22 of the Act of 1903 the Corporation were empowered to purchase and acquire by agreement any lands within the drainage area of the reservoirs and works authorised by the Act of 1888 for the purpose of protecting their waters and waterworks against pollution fouling contamination or injury and to borrow money for waterworks purposes ;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Act of 1903 in the manner herein-after set forth :

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Act of 1903 shall be altered so that the following provisions shall have effect viz.,—

Power to
acquire lands
and exercise
powers for
protection of
waters and
waterworks

Art. I. The Act of 1903 shall have effect as if in Section 5 the words and figures "or within the drainage area of the reservoirs and " works authorised by the Nelson Water and Gas Act 1866 and the " Nelson Local Board Act 1879" were inserted immediately after the words and figures "the Act of 1888" and as if wherever elsewhere in

[6 & 7 GEO. 5.] *Local Government Board's* [Ch. xxxv.]
Provisional Orders Confirmation (No. 5) Act, 1916.

that Section or in Sections 7 and 9 of the Act of 1903 references to the drainage area of the reservoirs and works authorised by the Act of 1888 occur the drainage area of the reservoirs and works authorised by the Act of 1866 and the Act of 1879 was also referred to.

A.D. 1916.
Nelson Order.
 authorised by
 Acts of 1866
 and 1879.

Art. II. The Corporation shall not construct any works for taking or intercepting water from any lands acquired by them in pursuance of Article I. of this Order unless the works are authorised by and the lands upon which the same are to be constructed are specified in an Act of Parliament or Provisional Order confirmed by Parliament but nothing in this Article shall prevent the Corporation from constructing and laying down in or upon any such lands such drains sewers water-courses and other works and conveniences as are authorised by Section 5 of the Act of 1903 as extended by Article I. of this Order.

Limiting
 powers of
 Corporation
 to abstract
 water.

Art. III. Notwithstanding anything in this Order the Corporation shall not under the powers of Section 22 of the Act of 1903 borrow any money for the purposes of this Order during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Consent of
 Treasury to
 borrowing
 during war.

Art. IV. This Order may be cited as the Nelson Order 1916.

Short title.

Given under the Seal of Office of the Local Government Board
 this Eighth day of May One thousand nine hundred and sixteen.

(L.S.)

WALTER H. LONG President.

H. C. MONRO Secretary.

BOROUGH OF ST. HELENS.

*Provisional Order to enable the Urban Sanitary Authority for
 the Borough of St. Helens to put in force the Compulsory
 Clauses of the Lands Clauses Acts.*

*St. Helens
 Order.*

To the Mayor Aldermen and Burgesses of the Borough of
 St. Helens; —

And to all others whom it may concern.

WHEREAS the Mayor Aldermen and Burgesses of the Borough of St. Helens acting by the Council as the Urban Sanitary Authority for that Borough (herein-after referred to as "the Corporation") require to purchase and take the lands described in the schedule hereto for the purpose of widening opening enlarging or otherwise improving the streets known as Lea Green Road and Walkers Lane:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from

38 & 39 Vict.
 c. 55.

[Ch. xxxv.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Orders Confirmation (No. 5) Act, 1916.

A.D. 1916. and after the date of the Act of Parliament confirming this Order the following provisions shall have effect that is to say:—

*St. Helens
Order.*

Compulsory
powers of
purchase.

Art. I. The Corporation shall be empowered to put in force with reference to the lands described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Short title.

Art. II. This Order may be cited as the St. Helens Order (No. 2) 1916.

The SCHEDULE above referred to.

Borough of ST. HELENS.

Nos. and Colours on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupiers.
48 (Green)	Arable land -	The Trustees of Michael James Hughes' Settled Estates namely The Right Honourable George Limbrey Selater-Booth C.B. Baron Basing and Sir Henry John Delves Broughton Baronet and Michael James Hughes The Caledonian Insurance Company Limited and Henry Baker Bates.	William Rimmer.
49 (Green)	Ditto -	Ditto -	Robert McKinnell.
50 (Blue)	Ditto -	The Trustee of Kate Laird Harry Dunlop Laird Colin Laird Louie Maxwell Ellis and Margaret Denning namely William Dunlop Laird and The Executor of the Will of Mary M. Ellison deceased namely William Dunlop Laird.	Joseph Rigby.

Given under the Seal of Office of the Local Government Board
this Second day of May One thousand nine hundred and sixteen.

(L.S.)

WALTER H. LONG President.
H. C. MONRO Secretary.

WANDLE VALLEY JOINT SEWERAGE DISTRICT.

A.D. 1916.

*Provisional Order for forming a United District under
Section 279 of the Public Health Act 1875.*

*Wandle,
Valley Order*

To the Urban District Council of Beddington and Wallington ; —

To the Urban District Council of Merton and Morden ; —

To the Urban District Council of Mitcham ; —

To the Urban District Council of Coulsdon and Purley ; —

And to all others whom it may concern.

WHEREAS the district councils named in column 2 of the Schedule to this Order are the local authorities within the meaning of the Public Health Act 1875 for the districts named in column 1 of that Schedule ;

38 & 39 Vict.
c. 55.

And whereas application has been made to the Local Government Board by the district councils being the local authorities as aforesaid to form the Urban Districts named in column 1 of the said Schedule together with a part of the Urban District of Coulsdon and Purley into a United District for the purposes of the provision and maintenance of a main sewer or sewers and the disposal of the sewage of the United District ;

And whereas the sewage from the Urban Districts named in column 1 of the said Schedule and from the said part of the Urban District of Coulsdon and Purley is now conveyed through sewers provided by the Councils of the said districts or their predecessors to sewage disposal works which were provided by the said Councils or their predecessors on land adjoining the River Wandle and situate partly in the Urban District of Mitcham and partly in the Borough of Wimbledon ;

And whereas the said sewage disposal works are now managed maintained and worked by a joint committee appointed in pursuance of the provisions of Section 57 of the Local Government Act 1894 by the district councils of the Urban Districts of Beddington and Wallington Coulsdon and Purley Merton and Morden and Mitcham ;

56 & 57 Vict.
c. 73.

And whereas it has been agreed that the said part of the Urban District of Coulsdon and Purley shall not be included in the proposed United District but it is proposed that until other arrangements are made for the disposal of the sewage of the said part of the said Urban District the conveyance of the sewage of the said part of the said

[Ch. xxxv.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Orders Confirmation (No. 5) Act, 1916.

A.D. 1916. Urban District to and its treatment at the said sewage disposal works should be continued:

*Wandle
Valley Order.*

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 279 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order as follows viz. :—

Definitions.

Art. I. In this Order—

- (1) The expression “the appointed day” means the date of the Act of Parliament confirming this Order;
- (2) The expression “the Act” means the Public Health Act 1875;
- (3) The expression “the Schedule” means the Schedule to this Order;
- (4) The expression “Constituent District” means an Urban District named in column 1 of the Schedule and the expression “Constituent Districts” means all the Constituent Districts so named;
- (5) The expression “Constituent Authority” means a district council named in column 2 of the Schedule and the expression “Constituent Authorities” means all the district councils so named;
- (6) The expression “the Joint Board” means the governing body of the United District to be formed in pursuance of this Order;
- (7) The expression “the existing Joint Committee” means the joint committee appointed as aforesaid in pursuance of the provisions of Section 57 of the Local Government Act 1894 by the district councils of the Urban Districts of Beddington and Wallington Coulsdon and Purley Merton and Morden and Mitcham;
- (8) The expression “the existing sewage disposal works” means the sewage disposal works provided as aforesaid together with all machinery and plant used in connexion therewith;
- (9) The expression “the Coulsdon and Purley area” means that part of the Urban District of Coulsdon and Purley the sewers whereof immediately prior to the appointed day communicate with the sewers in the Urban District of Beddington and Wallington and the sewage whereof is conveyed to and treated at the existing sewage disposal works;

[6 & 7 GEO. 5.] *Local Government Board's* [Ch. xxxv.]
Provisional Orders Confirmation (No. 5) Act, 1916.

(10) The expression "main sewer" or "main sewers" as used in this Order means any sewer or sewers which is or are for the time being receiving or is or are to be constructed with the object of receiving sewage from more than one Constituent District and the expression "existing main sewers" means all the main sewers existing on the appointed day. A.D. 1916.
Wandle
Valley Order.

Art. II. This Order shall come into operation from and after the appointed day. Commence-
ment of Order.

Art. III. The Constituent Districts shall be formed into a United District to be called the Wandle Valley Joint Sewerage District for the purposes herein-after mentioned. Formation of
district.

Art. IV. The Joint Board shall consist of three ex-officio members and eight elective members and shall be called the Wandle Valley Joint Sewerage Board. Constitution
of governing
body.

Art. V. The ex-officio members shall be the persons described in column 3 of the Schedule and the elective members shall be elected by the Constituent Authorities. Ex-officio
and elective
members.

Art. VI. The number of members of the Joint Board to be elected by each Constituent Authority shall be that set opposite to the name of the Constituent Authority in column 4 of the Schedule and the said members shall be chosen by each Constituent Authority from among their own members. Number and
qualification
of elective
members.

Art. VII. Such of the provisions of Section 46 of the Local Government Act 1894 as relate to members of councils of districts other than boroughs shall with the necessary modifications apply to members of the Joint Board. Disqualifica-
tions for
members.

Art. VIII. The first election of members of the Joint Board shall take place at a meeting of each Constituent Authority to be held within six weeks from the appointed day or within such further time as the Local Government Board may allow and seven days' previous notice in writing of the meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority. Date of first
election.

Art. IX. The clerk to each Constituent Authority shall notify in writing to the Local Government Board within seven days after the first election has taken place the names address and occupation of each of the persons elected by the Constituent Authority as a member of the Joint Board. Notification to
Local Govern-
ment Board of
members first
elected.

Art. X. An elective member of the Joint Board shall continue in office until the expiration of the period for which he was elected a member of the Joint Board or until he dies or resigns or ceases to be Tenure of
office of
members.

[Ch. xxxv.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Orders Confirmation (No. 5) Act, 1916.

A.D. 1916. a member of the Constituent Authority as a member of which he was
qualified to be elected or otherwise becomes disqualified or until he
Wandle
Valley Order. becomes an ex-officio member of the Joint Board whichever shall first
happen :

Provided always that an elective member shall not continue in office for a longer period than three years without re-election and a member who ceases to hold office by reason of the expiration of his period of office or by reason of his resignation or disqualification or ceasing to be a member of the said Constituent Authority shall subject to the provisions of Article VII. of this Order be re-eligible as a member of the Joint Board if at the time of re-election he is qualified to be so re-elected.

Supply of
vacancies.

Art. XI. Any vacancy occurring amongst the elective members of the Joint Board by death resignation disqualification or otherwise shall be filled up by the Constituent Authority in whose representation the vacancy happens at a meeting to be held within six weeks of the occurrence of the vacancy or within such further period as the Local Government Board determine and seven days' previous notice in writing of the said meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority and the clerk shall forthwith notify in writing to the clerk to the Joint Board the names address and occupation of the person elected to fill the said vacancy.

Meetings.

Art. XII.—(1) The time and place of holding the first meeting of the Joint Board shall be fixed by the Local Government Board and the subsequent ordinary meetings of the Joint Board shall be held at such times and places as the Joint Board may appoint and at all meetings of the Joint Board four members shall constitute a quorum.

(2) An extraordinary meeting shall be summoned by the clerk to the Joint Board when a requisition for that purpose is addressed to him by the chairman or any three members of the Joint Board.

(3) The requisition shall be in writing and no business other than that specified in the requisition shall be transacted at the extraordinary meeting.

(4) Notices of all meetings of the Joint Board shall be delivered or sent by post so as to reach the last known place of abode or business in England of each member of the Joint Board three clear days before the day of meeting or at such earlier time as the Joint Board direct.

Committees.

(5) The Joint Board may appoint committees consisting of members of the Joint Board for the exercise of any powers which in the opinion of the Joint Board can be properly exercised by committees but the acts of every such committee shall unless otherwise directed by the

[6 & 7 GEO. 5.] *Local Government Board's* [Ch. xxxv.]
Provisional Orders Confirmation (No. 5) Act, 1916.

Joint Board be submitted to the Joint Board for approval Provided A.D. 1916.
 that a committee so appointed shall in no case be authorised to borrow *Wandle*
 money or to issue any precept for contributions or to enter into any *Valley Order.*
 contract and any such committee shall be subject to the provisions of
 Part IV. of the First Schedule to the Local Government Act 1894 so
 far as they are applicable.

Art. XIII. The Joint Board shall at their first meeting or at an Appointment
 adjournment thereof and thereafter as occasion requires appoint a and remuneration of
 chairman (who shall subject to the provisions of Articles VII. and X. officers.
 of this Order continue chairman for such period not exceeding three
 years as may be determined by the Joint Board at the time of his
 appointment) a treasurer and a clerk and they may appoint such other
 officers and servants as they think requisite for the purposes for which
 the Joint Board is constituted The Joint Board may pay their treasurer
 clerk and other officers and servants such reasonable remuneration as
 they deem expedient and every such treasurer clerk and other officer
 and servant shall be removable by the Joint Board at their pleasure.

Art. XIV.—(1) The purposes for which the United District is Purposes for
 formed are as follows :— which United
 District is
 formed.

(a) The management maintenance and working of the existing
 main sewers (and the works machinery and plant used in
 connexion therewith) and the existing sewage disposal works
 and of any other sewer which though not constructed as a
 main sewer becomes a main sewer as defined in this
 Order ;

(b) The construction and maintenance of such additional main
 sewer or main sewers and the construction and maintenance
 of such additional works as may be required for the recep-
 tion and disposal of the sewage from the sewers of the
 Constituent Districts ;

(c) The acquisition of such additional lands as may from time to
 time be necessary and the provision construction mainten-
 ance execution erection and working of such additional
 works machinery and plant as may be required for con-
 veying sewage from the Constituent Districts to the existing
 sewage disposal works or to the additional lands so acquired
 or to any other convenient place or places where the sewage
 may be purified and for purifying the same by precipita-
 tion and filtration or otherwise in such manner that it may
 be discharged into any stream river or watercourse without
 breach of the Rivers Pollution Prevention Acts 1876 and
 1893 or of any other provisions of the law.

39 & 40 Vict.
 c. 75.
 56 & 57 Vict.
 c. 31.

[Ch. xxxv.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Orders Confirmation (No. 5) Act, 1916.

A.D. 1916. (2) Until the first meeting of the Joint Board the existing main
Wandle sewers and the existing sewage disposal works shall remain as here-
Valley Order. tofore under the control of the Constituent Authorities or of the
existing Joint Committee or any of them as the case may be :

Provided that any sewer to which this Article relates shall in
the event of its ceasing to be a main sewer but continuing to be used
for the conveyance of sewage vest in and be under the control of and
be maintained by the Constituent Authority in whose district it is
situated.

Powers rights
duties &c. of
Joint Board. Art. XV. For the purposes of this Order the following sections of
the Act the Public Health (Officers) Act 1884 and the Public Health
(Members and Officers) Act 1885 shall apply and the Joint Board shall
for the purposes of this Order have exercise perform and be subject
to all the powers rights duties capacities liabilities and obligations of
an Urban District Council under those sections so far as the same are
applicable namely:—

38 & 39 Vict.
c. 55.

Of the Act:—

Sections 14 to 20 and 26 to 34 as to sewerage and drainage.

Section 153 as to removal of gas and water pipes.

Sections 173 and 174 relating to contracts.

Sections 175 176 and 177 relating to purchase taking on lease
sale exchange and letting of lands.

Sections 179 to 181 relating to arbitration.

Section 192 (except as regards the inspector of nuisances)
Sections 193 to 197 and Sections 205 and 206 (except so
much of Section 206 as requires the publication in a local
newspaper of the annual report) relating to officers provision
of offices and conduct of business of local authorities.

Sections 245 247 (as amended by the District Auditors Act 1879)
249 and 250 relating to audit.

Sections 251 253 and 254 and Sections 258 to 262 and 265 to
267 and Section 269 as amended by the Summary Jurisdiction
Act 1884 relating to legal proceedings.

Section 285 relating to the execution of works in adjoining
districts and combination for execution of works.

Section 298 as to costs of Provisional Orders.

Sections 299 (except so far as relates to water supply) 300 301
and 302 relating to defaulting local authorities.

Sections 305 to 309 including miscellaneous provisions.

Sections 327 328 and 329.

[6 & 7 GEO. 5.] *Local Government Board's* [Ch. xxxv.]
Provisional Orders Confirmation (No. 5) Act, 1916.

A.D. 1916.

*Wandle
Valley Order.*
47 & 48 Vict.
c. 74.

Of the Public Health (Officers) Act 1884 :—

Section 2.

Of the Public Health (Members and Officers) Act 1885 :—

Section 2.

48 & 49 Vict.
c. 53.

Provided that nothing herein contained shall affect the powers of the Constituent Authorities with reference to sewers other than main sewers or to any other works required for the sewerage of any of the Constituent Districts.

Art. XVI. All the expenses incurred by the Joint Board shall be defrayed out of a common fund to which each Constituent Authority shall contribute in the manner provided by Section 283 of the Act.

Expenses of
Joint Board.

Art. XVII. The accounts of the Joint Board shall at all reasonable times be open to inspection and transcription without payment by any member of a Constituent Authority or by any officer of a Constituent Authority authorised by them for that purpose.

Inspection of
accounts.

Art. XVIII. A copy of the auditor's report and of the abstract of the accounts of the Joint Board when duly audited shall be sent by the Joint Board to each Constituent Authority.

Auditor's
report and
abstract of
accounts.

Art. XIX.—(1) The provisions of Section 305 of the Act shall apply for the purposes of this Order not only in the cases therein mentioned but also where the Joint Board desire to exercise the powers thereof for the purpose of discovering or ascertaining any communication with or opening into any of the sewers under the control of the Joint Board or the flowing or passing of any matter into those sewers or into any drain channel or watercourse communicating therewith.

Certain
provisions
of Public
Health Act
1875 made
applicable
to Order.

(2) The Joint Board shall have after reasonable notice to the Constituent Authority the right to inspect any sewer of that authority which communicates directly or indirectly with any main sewer and for the purposes of such inspection the Joint Board shall have all the powers of the Constituent Authority in relation thereto.

Art. XX. If at any time any new district is formed including the whole or any part of a Constituent District or the boundaries of a Constituent District are otherwise altered or a Constituent District is created or included in a municipal borough or any repeal or alteration is made in the law affecting the United District or the Joint Board or a Constituent District or Constituent Authority in matters touching their relation to the United District or the Joint Board then and in every such case the Local Government Board may by order to be published as they direct make such provision as to them seems fit for adapting the provisions of this Order to the alteration so made

Power of Local
Government Board
to adapt
provisions of
Order on
alterations of
Constituent
Districts.

A.D. 1916.

*Wandle
Valley Order.*
 Communica-
 tion from
 sewers of
 Constituent
 Authorities
 into those of
 Joint Board.

and to the incidents and consequences thereof and every such order shall have effect as if the terms thereof were inserted in this Order.

Art. XXI. For the purposes of this Order all main sewers shall be under the control of the Joint Board but a Constituent Authority shall be entitled as of right to have communication from any of their sewers into any main sewer subject to the following provisions:—

(1) The communications between the sewers of the Constituent Authority and the main sewers shall in every case be wholly under the control of the Joint Board and any such communication made after the appointed day shall be made by the Joint Board at the expense of the Constituent Authority and the Joint Board shall at their own cost be at liberty at any time to alter any such means of communication:

(2) After the appointed day the Constituent Authority proposing to construct any new sewer for the purpose of bringing the sewage of their district or of any part thereof into any main sewer by a new communication with any such last-mentioned sewer shall two months at least before they commence the construction of the means of communication send to the Joint Board plans and sections showing the proposed places of communication and the proposed level at those places of the intended new sewer and the place of communication and the level thereat of every such new sewer shall be such as shall be determined by the Joint Board and every difference respecting any such determination which may arise between the Constituent Authorities and the Joint Board shall be determinable in accordance with the provisions of Article XXIII. of this Order.

Agreement
 for disposal
 of sewage of
 part of Urban
 District of
 Coulsdon and
 Purley.

Art. XXII.—(1) For the purpose of the disposal of the sewage of the Coulsdon and Purley area the Urban District Council of Coulsdon and Purley shall be entitled to require and the Joint Board and the Urban District Council of Beddington and Wallington shall respectively if so required permit the existing direct or indirect communication of the sewers in the Coulsdon and Purley area with the sewers vested in or under the control of the Urban District Council of Beddington and Wallington and of the Joint Board to be maintained and continued and the sewage from the said area to be delivered at the outfall of the Joint Board upon such terms and conditions as may be agreed upon between the Urban District Council of Coulsdon and Purley the Joint Board and the Urban District Council of Beddington and Wallington or failing agreement as may be determined in the manner provided by Article XXIII. of this Order Provided that the sewer or sewers within the Urban District of Beddington and Wallington with and by means of which

the said communication is maintained and continued and the sewage of the Coulsdon and Purley area delivered as aforesaid shall not solely by reason thereof be deemed to be a main sewer or main sewers or be under the control of the Joint Board and the Urban District Council of Beddington and Wallington shall not make any charge upon the Urban District Council of Coulsdon and Purley in respect of the maintenance and continuance of the said means of communication with or of the conveyance of the said sewage through any sewer in the Urban District of Beddington and Wallington.

A.D. 1916.
Wandle Valley Order.

(2) For the purpose of enabling the Joint Board to dispose of the sewage of any county borough or county district other than one of the Constituent Districts the Joint Board may subject to the provisions of subdivision (1) of this Article with the consent of the Local Government Board agree to allow the sewers of the council of any county borough or county district to communicate either directly or indirectly with the sewers vested in or under the control of the Joint Board or deliver sewage at the outfall of the Joint Board but any such agreement and communication shall subject to the provisions of subdivision (1) of this Article be subject to the consent of the council through whose sewers any such indirect communication with the sewers of the Joint Board is to be effected.

Agreements between Joint Board and District Councils other than Constituent Authorities as to communication with sewers of Joint Board.

(3) The conveyance and purification of any sewage admitted to the sewers or delivered at the outfall in pursuance of subdivision (1) of this Article or under any agreement made in pursuance of subdivision (2) of this Article shall be deemed to be within the purposes for which the United District is formed.

Art. XXIII. The Local Government Board may by order provide for the settlement of any doubt or difference which may arise between any of the Constituent Authorities or between any or all of the Constituent Authorities and the Joint Board or otherwise respecting any matter arising out of the provisions or as to the effect of this Order and may on the application of any of the Constituent Authorities or of the Joint Board or of the Urban District Council of Coulsdon and Purley adjust or transfer any property or liabilities so far as the same may be affected by this Order and may by such order deal with any matter which may be dealt with by an order made under Section 304 of the Act.

Settlement of differences.

Art. XXIV. This Order may be cited as the Wandle Valley Joint Sewerage Order 1916.

Short title.

[Ch. xxxv.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Orders Confirmation (No. 5) Act, 1916.

A.D. 1916.

The SCHEDULE above referred to.

*Wandle
Valley Order.*

1.	2.	3.		4.
Name of District.	Name of District Council.	Ex-officio Members.		Elective Members.
		Description.	Number.	Number.
The Urban District of Beddington and Wallington.	The Urban District Council of Beddington and Wallington.	The Chairman of the District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the District Council.	1	3
The Urban District of Merton and Morden.	The Urban District Council of Merton and Morden.	The Chairman of the District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the District Council.	1	2
The Urban District of Mitcham.	The Urban District Council of Mitcham.	The Chairman of the District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the District Council.	1	3

Given under the Seal of Office of the Local Government Board
this Sixth day of May One thousand nine hundred and sixteen.

(L.S.)

WALTER H. LONG President.

H. C. MONRO Secretary.

Printed by EYRE and SPOTTISWOODE, LIMITED,

FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

To be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LIMITED, 29, BREAMS BUILDINGS, FETTER LANE, E.C.O., and
28, ABINGDON STREET, S.W., and 54, ST. MARY STREET, CARDIFF; or
H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23, FORTH STREET, EDINBURGH; or
E. PONSONBY, LIMITED, 116, GRAFTON STREET, DUBLIN;
or from the Agencies in the British Colonies and Dependencies,
the United States of America and other Foreign Countries of
T. FISHER UNWIN, LIMITED, LONDON, W.C.